

FORM No. HCJD/C-121
ORDER SHEET
IN THE LAHORE HIGH COURT,
LAHORE
JUDICIAL DEPARTMENT

W.P.No. 10657 of 2019

Khalid Mahmood.		Vs.	Addl. District Judge, etc.
<i>Sr. No. of order/ proceedings</i>	<i>Date of order/ Proceeding</i>	<i>Order with signature of Judge, and that of Parties' counsel, where necessary</i>	
	22.02.2019.	Rana Muhammad Naeem Khan, Advocate for petitioner.	

Through this constitutional petition, the petitioner has called in question the judgments and decrees dated 03.05.2018 and 22.12.2016 passed by the courts below, whereby the said courts have partially allowed the claim of the respondents.

2. Brief facts of the case are that marriage between the parties was solemnized on 30.10.2011 and from the said wedlock minor respondents No. 3 to 5 were born. On 04.02.2016, the plaintiffs filed a family suit for dissolution of marriage, etc., against the petitioner-defendant, which was contested by the petitioner by way of filing written statement in which he controverted the claim of the respondents. On conclusion of the trial, the minor respondents No. 3 to 5 were held entitled to receive maintenance allowance of Rs. 2000/- per month each with 10% annual increase from institution of the suit till their legal entitlement. The plaintiff/respondent No.2 was entitled to receive Rs. 300,000/- as an alternate price of dowry articles. On appeal filed by the respondent, the learned appellate court maintained the findings recorded by the learned trial court vide judgment and decree dated 03.05.2018. Both the afore-referred

judgments and decrees are under challenge through this constitutional petition.

3. Heard. Record perused.

4. The counsel for the petitioner while referring observation made in Paragraph No. 8 of the judgment dated 22.12.2016 passed by the learned trial court, whereby the said courts fixed the alternate price of dowry keeping in view admission of the defendant at Rs. 3,00,000/- argues that it is nowhere stated by the petitioner that he admitted the claim of dowry articles. It is noticed that in Paragraph No.3 of the written statement, although the petitioner has stated that the list is fake and fabricated yet he did not deny that dowry articles of ordinary nature were given to respondent rather claimed that same were consumed during the subsistence of marriage and the rest of the items are lying seal pack. It is further noticed that the learned trial court after considering the evidence available on record fixed the alternate price of dowry articles after excluding jewellery, clothes, shoes, beddings and items of fancy decoration and not merely on the basis of admission. Consequently, the said argument of the learned counsel is of no force, hence, replied in negative.

5. The other arguments raised by the learned counsel for the petitioner is that the learned courts below have not considered the financial capacity of the petitioner, who is source less and earns Rs. 9000/- only per month, whereas the maintenance allowance of the minor respondents fixed by the courts below @ Rs. 2000/- per month each is not within his paying range. It has come in the evidence that the petitioner is a Munshi in vegetable market and is earning his livelihood from the said source. It is observed that

the minor respondents being legitimate children of the petitioner are entitled to be maintained by their father and the petitioner cannot absolve from his responsibility merely by stating that he has no sufficient source of income to maintain his children.

6. As order of maintenance allowance for Rs. 2000/- per month each is not exorbitant and would barely be enough to meet with the day to day needs of the minors and is based on proper appreciation of evidence which finding is well founded, therefore, constitutional petition against the same is not maintainable as no illegality in the impugned order is pointed out.

7. Learned counsel for the petitioner has failed to point out any misreading, non-reading or illegality in the impugned judgments. The assessment and appraisal of evidence is the function of the Family Court, which is vested with exclusive jurisdiction in this regard. This Court while exercising constitutional jurisdiction does not ordinarily reappraise the evidence produced before the courts below to substitute findings of facts recorded by the said courts, nor gives its opinion regarding quality or adequacy of the evidence unless any misreading, non-reading of record or any illegality is pointed out, which have not been established on the record, hence, there is no ground to set-aside the said findings of fact.

8. For what has been discussed above, this petition being devoid of any merits **dismissed in limine**.

(Muzamil Akhtar Shabir)
Judge